

generally made pursuant to CCP § 1008, however, Plaintiff did not comply with CCP § 1008 as the motion was made more than ten days after the judgment was entered. Plaintiff did not provide an affidavit as required by CCP § 1008(a). The Court also reviewed CCP § 473 to determine whether the Court could grant the relief requested pursuant to CCP § 473(b). However, CCP § 473(b) would require an application and an attorney's sworn affidavit, neither of which were provided.

As Plaintiff has failed to identify legal grounds for the relief sought and has failed to comply with the two possible statutes under which Plaintiff may have been able to obtain relief, the motion is **DENIED**. Plaintiff did not provide a proposed Order as required by Local Rule of Court 5.17(D). Plaintiff is to prepare the Order.

US LBM, LLC VS. WOOLLEY, ET AL.

Case Number: 24CVG-00135

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on December 19, 2024 to Defendants Donald Franklin Woolley and The Western Surety Company and their counsel, McCarthy & Rubright, LLP for failing to appear at the review hearing on December 16, 2025. No written response was filed, however, Defendants filed a Status Conference Statement for today's 9:00 a.m. review hearing. The Order to Show Cause is **DISCHARGED**. The Court will call the matter at 9:00 a.m.

9:00 a.m. – Review Hearings

BUCKLEY, ET AL. VS. CALIFORNIA DEPARTMENT OF FORESTRY AND FIRE PROTECTION

Case Number: 23CV-0201699

This matter is on calendar for conformation of deposit of funds into blocked account. The Court notes that since this hearing was calendared, Plaintiff appeared and informed the Court that the settlement funds will be available in late February. The Court set **Monday, March 24, 2025 at 9:00 a.m. in Department 63** for review regarding confirmation of deposit. The matter is dropped from calendar and **no appearance is necessary on today's calendar**.

EDWARDS VS. TYRRELL RESOURCES, INC., ET AL.

Case Number: 23CV-0202609

This matter is on calendar for a trial setting conference. The matter is at issue. The Court designates this matter as a Plan III case and intends on setting it for trial no later than June 24, 2025. Defendants have posted jury fees. Plaintiff has waived jury by failing to post within ten days of when leave was granted on July 22, 2024. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. **An appearance is necessary on today's calendar**.

FLORES VS. DADDARIO

Case Number: 24CV-0204188

This matter is on calendar for status of service on Defendant. The Court still has not received a valid proof of service. As Plaintiff has filed a notice of appeal with the Court of Appeal, this Court will continue the case to await a response from the Court of Appeal. The case is calendared for **Tuesday, April 1, 2025 at 9:00 am** for status of service.

FLORES VS. MILLER

Case Number: 24CV-0204648

This matter is on calendar for status of service on Defendant. The Court still has not received a valid proof of service. As Plaintiff has filed a notice of appeal with the Court of Appeal, this Court will continue the case to await a response from the Court of Appeal. The case is calendared for **Tuesday, April 1, 2025 at 9:00 am** for status of service.